

The Consumer Protection Act, 2019

STATUTORY DEFINITIONS & FINANCIAL JURISDICTIONS REFERENCE GUIDE

This document serves as a formal reference for key statutory definitions and the designated financial thresholds for filing claims across various Commissions under the Consumer Protection Act, 2019.

Section 2(11) — "Deficiency"

Definition: "Deficiency" signifies any fault, imperfection, shortcoming, or inadequacy in the quality, nature, and manner of performance which is required to be maintained by or under any law for the time being in force, or has been undertaken to be performed by a person in pursuance of a contract or otherwise in relation to any service.

Statutory Inclusions: The legal definition explicitly encompasses:

- Any act of negligence or omission or commission by such person which causes loss or injury to the consumer.
- The deliberate withholding of relevant information by such person to the consumer.

Section 2(47) — "Unfair Trade Practice"

Definition: An "unfair trade practice" is a trade practice which, for the purpose of promoting the sale, use, or supply of any goods or for the provision of any service, adopts any unfair method or unfair or deceptive practice.

Covered Actions: This broadly encompasses, but is not limited to, the following practices:

- Making false or misleading statements regarding a product's or service's standard, quality, quantity, or grade.
- Falsely representing re-built, second-hand, renovated, or old goods as new goods.
- Giving the public any warranty or guarantee of the performance, efficacy, or length of life of a product that is not based on an adequate or proper test.
- Publishing deceptive bargain advertisements or permitting the offering of gifts and prizes with the intention of not providing them as offered.
- Manufacturing or offering spurious goods for sale, or hoarding/destroying goods to artificially raise their cost.
- Refusing to withdraw defective goods or deficient services and refund the consideration within the stipulated time period.

Financial Jurisdictions for Claims

To ensure that legal correspondence and formal complaints are addressed to the correct adjudicating authority, claims are strictly categorized based on their monetary value (the total value of the goods or services paid as consideration).

SECTION	ADJUDICATING AUTHORITY	MONETARY THRESHOLD (VALUE PAID)
Section 34	District Commission	Does not exceed ₹1 Crore (One Crore Rupees)
Section 47	State Commission	Exceeds ₹1 Crore , but does not exceed ₹10 Crore
Section 58	National Commission	Exceeds ₹10 Crore (Ten Crore Rupees)